

November 17, 2017



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20556

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium ion batteries in excess of 35 kg by cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
 - d. This special permit serves as an approval under Special Provision A99 of the ICAO TI and as a "Competent Authority Approval" as defined under 49 CFR § 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Column (9B) in that packagings may exceed 35 kg net weight when transported via cargo-only aircraft.
5. BASIS: This special permit is based on the application of SAFT America Inc dated September 28, 2017 submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2017108522

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:

a. SAFETY CONTROLS: Only lithium ion aircraft batteries, designated for purposes as the "JSF 270V battery" and which are designed solely for use in the F-35 Lightning Joint Strike Fighter ("JSF") aircraft, are authorized for transport under this special permit. The batteries must be fitted with a strong, impact-resistant outer battery casing and meet the following:

- (1) Each battery is comprised of 84 cells connected in series;
- (2) The nominal voltage of each battery is 303 V;
- (3) The nominal Watt-hour rating of each battery is 2030 Wh;
- (4) The state of charge for batteries may not exceed 30% when offered for transportation;
- (5) Batteries must be protected against short circuiting; and
- (6) The battery terminals may not support the weight of other superimposed elements.

b. PACKAGING -

- (1) Except as provided in Paragraph 5.b.(3) below, batteries must be individually packed in inner packagings that completely enclose the batteries, and surrounded by cushioning material that is non-combustible and non-conductive;

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(2) Except as provided in Paragraph 5.b.(3) below, batteries must be further packaged in an outer packaging that meets Packing Group II performance criteria, as required in 173.185(b)(3)(ii);

(3) Lithium batteries with a mass of 12 kg or greater and having a strong, impact-resistant outer casing, or assemblies of such batteries may be packed in strong outer packagings or protective enclosures;

(4) A package may contain not more than one battery; and

(5) The net weight in a package may not exceed 43.5 kg.

(6) For cells and batteries with a net weight greater than 30 kg, only one cell or battery per package is authorized.

c. TESTING REQUIREMENTS - Each cell and battery must be a type that has passed the required tests in accordance with the UN Manual of Tests and Criteria as required in 173.185(a).

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the grantee may only offer hazardous materials (i.e., the grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained and made available for examination at each facility where the materials are package and offered or reoffered for transportation.

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- d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit and destination.
 - e. The special permit holder must maintain a record of all activity conducted under the authority granted in this special permit.
 - f. The record must contain a complete listing and number of shipments made to include:
 - (1) Dates of Shipment.
 - (2) Description of each type of shipment (to include origination/destination).
 - g. All of the above information must be made available upon request to a DOT representative or an enforcement Official.
 - h. A battery, battery assembly or monitoring system that is determined to be defective, may not be shipped under this special permit.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/Andrew Eckenrode